

Circular : No. 354 [F. No. 309/58/82-ED], dated 18-3-1983

1. The Madras High Court has, in the case of *G.D. Narendra v. CED* [1972] 85 ITR 647, held that relief under section 50 in respect of court fee paid, cannot be denied solely on the ground that the limitation under section 61 for rectification of estate duty assessment has expired. Section 50 casts a statutory obligation upon the Controller to allow such relief and the time limit specified in section 61 has no application in such cases.
2. The Board have accepted the Madras High Court decision.